

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF KINGS

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JAMES VERONICO,

Plaintiff,

VERIFIED COMPLAINT

Index No.:

-against-

THE CITY OF NEW YORK, SARGENT
WILSON ALBA, Shield # 4724, POLICE
OFFICER JAKE ROTOLO, Shield # 23896,
and POLICE OFFICER JOHN/JANE DOE(S)

Defendants.

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Plaintiff JAMES VERONICO, by her attorneys LAW OFFICE OF DAVID A. ZELMAN,
upon information and belief allege:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff JAMES VERONICO (hereinafter “VERONICO” or “Plaintiff”) seeks damages to redress the deprivation, under color of state law, of rights secured to him under the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution. On or about August 10, 2017, VERONICO was falsely arrested and excessively detained by employees of the City of New York, including but not limited to Sargent WILSON ALBA, Shield #4724 and Police Officer JAKE ROTOLO, Shield #23896. As a result of the violations of his constitutional rights, VERONICO suffered physiological injuries, loss of liberty, damage to reputation, among other injuries.

II. JURISDICTION

2. Jurisdiction is conferred upon this Court by 28 U.S.C. § 1343(3) and (4), which provides for original jurisdiction in this court of all suits brought pursuant to 42 U.S.C. § 1983, and by 28 U.S.C. §1331, which provides jurisdiction over all cases brought pursuant to the Constitution and laws of the United States.

III. PARTIES

3. VERONICO at all times relevant hereto resided in Brooklyn, New York.
4. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.
5. Defendants including but not limited to SARGENT WILSON ALBA, Shield #4724 and POLICE OFFICER JAKE ROTOLO, Shield # 23896 (hereinafter "ALBA" or "ROTOLO" or "Defendants") were NYPD police officers, and at all times relevant hereto, acted in that capacity as agents, servants, and/or employees of Defendant CITY and within the scope of their employment. Officers, including but not limited to ALBA and ROTOLO are sued in their official and individual capacity.
6. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances,

regulations, policies, customs and usages of the State of New York and/or the City of New York.

IV. FACTS

7. On or about August 10, 2017, at approximately 1:00 P.M., VERONICO was lawfully standing on the corner of 4th Street and Hoyt Street in Brooklyn, New York.
8. VERONICO was filming a video regarding traffic safety. Specifically, VERONICO was observing speeding vehicles in his neighborhood which did not abide by existing traffic laws.
9. VERONICO was approached by employees of the City of New York, including but not limited to Defendants ALBA and ROTOLO.
10. Following a short discussion, all of which was captured on video, VERONICO was handcuffed and placed in a police vehicle.
11. VERONICO was transported to the 76th Precinct where he was held against his will for approximately seven hours then was transported to the 72nd Precinct.
12. VERONICO was detained for a total of approximately thirteen hours until he was released from the 72nd Precinct at 2:00AM on August 11, 2017.
13. Defendants, including but not limited to ALBA and ROTOLO brought the matter to the Kings County District Attorney's office which declined to prosecute.
14. That heretofore and on the 7th day of September, 2017, Plaintiff's Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained.

15. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

V. AS FOR A FIRST CAUSE OF ACTION

Pursuant to § 1983 and State Law (FALSE ARREST)

16. That Defendants including but not limited to WILSON ALBA and JAKE ROTOLO had neither valid evidence for the arrest of VERONICO nor legal cause or excuse to seize and detain him.
17. That in detaining VERONICO without a fair and reliable determination of probable cause, Defendants, including but not limited to WILSON ALBA and JAKE ROTOLO abused their power and authority as a policymaker of the NYPD under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. VERONICO was but one of those persons.
18. Upon information and belief, it was the policy and/or custom of Defendants including but not limited to ALBA and ROTOLO to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
19. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

20. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of VERONICO's rights alleged herein.
21. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of VERONICO's rights, subjected VERONICO to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
22. By reason of the foregoing, VERONICO suffered mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VI. AS FOR A SECOND CAUSE OF ACTION

Pursuant to § 1983 and State Law (EXCESSIVE DETENTION)

23. Paragraphs "1 through 22" are hereby realleged and incorporated by reference herein.
24. That Defendants including but not limited to ALBA and ROTOLO had no legal cause nor excuse to detain VERONICO for a prolonged period.
25. That Defendants, including but not limited to ALBA and ROTOLO detained VERONICO excessively in violation of VERONICO's civil rights.
26. That Defendants ALBA and ROTOLO should have expeditiously investigated this matter and released VERONICO.

27. By reason of Defendants' acts and omissions, Defendants ALBA and ROTOLO, acting under color of state law and within the scope of its authority, in gross and wanton disregard of VERONICO's rights, deprived VERONICO of his liberty when it subjected him to an unlawful, illegal and excessive detention, in violation of his due process rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
28. That in so acting, Defendants, including but not limited to ALBA and ROTOLO, abused its power and authority as policymaker of the New York City Police Department under the color of State and/or local law.
29. That upon information and belief, it was the policy and/or custom of Defendants, including but not limited to ALBA and ROTOLO to inadequately train and supervise their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
30. That as a result of the above described policies and customs, the officers, staff, agents and employee of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
31. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendants, including but not limited to ALBA and ROTOLO to the constitutional rights of arrestees and were the cause of the violations of VERONICO's rights alleged herein.

32. That Defendants, including but not limited to ALBA and ROTOLO, through its officers, agents and employees, unlawfully incarcerated VERONICO for an excessive period of time.

33. By reason of the foregoing, VERONICO suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent

VI. AS FOR A THIRD CAUSE OF ACTION

Pursuant to § 1983 (RETALIATION FOR EXERCISE OF FIRST AMENDMENT RIGHTS)

34. Paragraphs 1 through 33 are hereby realleged and incorporated by reference herein.

35. VERONICO's statements to Defendants were protected speech under the First Amendment.

36. In retaliation for VERONICO's protected speech, Defendant, arrested VERONICO in violation of First Amendment Rights.

37. That in retaliating against VERONICO for his protected speech, Defendant CITY abused its power and authority as a policymaker of the NYPD under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit in retaliation for exercise of their First Amendment rights. VERONICO was but one of those persons.

38. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

39. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
40. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of VERONICO's rights alleged herein.
41. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of VERONICO's rights, subjected VERONICO to an unlawful retaliation in violation of the First Amendment of the United States Constitution.
42. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer violation of civil rights, economic damages, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

INJURY AND DAMAGES

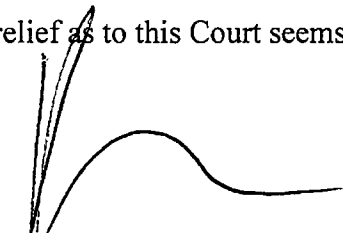
As a result of the acts and conduct complained of herein, Plaintiff has suffered and will continue to suffer, emotional pain, suffering, inconvenience, injury to his reputation, loss of liberty and other non-pecuniary losses. Plaintiff has further experienced severe emotional and physical distress.

WHEREFORE, Plaintiff respectfully requests that judgment be entered:

1. Awarding Plaintiff compensatory damages in a full and fair sum to be determined by a jury;

2. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiff interest from August 10, 2017; and
4. Awarding Plaintiff reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

DATED: Brooklyn, New York
January 16, 2018



David A. Zelman, Esq.
Attorney for Plaintiff
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Brooklyn, NY 11225
(718) 604-3072

ATTORNEY VERIFICATION

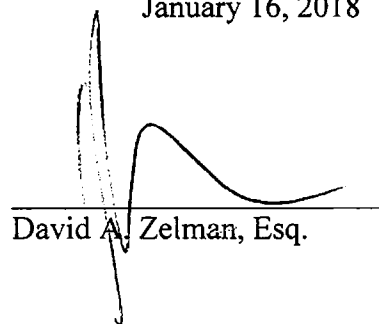
David A. Zelman, Esq., an attorney at law, duly admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury that:

He is the attorney for the plaintiff(s) in the above entitled action. That he has read the foregoing Verified Summons and Complaint and knows the contents thereof, and upon information and belief, deponent believes the matters alleged therein to be true.

The reason this Verification is made by deponent and not by the Plaintiff(s) is that the Plaintiff(s) is presently in a county other than the one in which the plaintiff's attorneys maintain their office.

The source of deponent's information and the grounds of his belief are communication, papers, reports and investigation continued in the file.

DATED: Brooklyn, New York
January 16, 2018



David A. Zelman, Esq.